BY ORDER OF THE
LITTLE ROCK AFB COMMANDER

LITTLE ROCK AFB INSTRUCTION

31-105

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Security

MILITARY CUSTOMS PROGRAM (EXCEPTED)

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This instruction implements DoDI 4000.19, 19 U.S.C. § 1401(i), 9 CFR §94.5 and 7 CFR§330.400, *Plant Protection Act of 2000 and Animal Health Act*, AFI 24-605 Volume 2, *Air Transportation Operations*– Part V, **Chapter 507**, *Military Customs Inspectors-Excepted (MCI-E),* AFMAN 11-202, v3, *Flight Operations*, Chapter 8, as well as the Memorandum of Agreement Between U.S. Customs and Border Protection and Little Rock Air Force Base regarding the Domestic Military Customs Officer (excepted) Program, and outlines the responsibilities and procedures for the conduct of the customs, agriculture, and health quarantine inspection program at Little Rock AFB. This instruction applies to the 19th Airlift Wing, 314th Airlift Wing, 189th Airlift Wing and all other tenant units and personnel requesting, undergoing and performing US Customs clearance at Little Rock AFB. Ensure all records created, as a result of processes prescribed in this publication, are maintained in accordance with AFMAN 33-363, *Management of Records* or as directed by Department of Homeland Security. Ensure that all records created as a result of processes prescribed in this publication are maintained In Accordance With (IAW) AFI 33-332, *Management of Records*, and disposed of IAW with the Air Force Records Information Management System (AFRIMS) located at **https://www.my.af.mil/gcss- af61a/afrims/afrims/**. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Form 847s from the field through the appropriate functional' s chain of command.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed in its entirety

1. Program Objectives. The 19th Airlift Wing Commander will establish a Military Customs Program (MCP) that details; pre-announcement of inbound customs aircraft, Military Customs Inspector-Excepted response, Regulated Garbage removal, notification procedures and follow up actions as requested by US Customs and Border Protection (CBP).

1.1. All personnel performing inspection and refuse duties will complete annual training, as required by the Area Port Director, U.S. Customs and Border Protection, Memphis, TN.

1.2. 19 LRS/Aircraft Services personnel for Regulated Garbage and 19 SFS Military Customs Officers-Excepted (MCO-E) perform duties for the U.S. Customs and Border Protection Office, Little Rock, AR.

2. 19 SFS Responsibilities. The 19 SFS/CC will appoint a program manager who will maintain records of certification for all personnel involved in the program, liaison with US CBP personnel, determine procedures for Military Customs Officer – Excepted (MCO-E) response and perform self-inspections of the program.

2.1. The Military Customs Program Manager (MCPM) will review the CBP Form 55's monthly to determine the status of available inspectors and schedule training as appropriate. The MCPM will also generate a roster of on-call 19 SFS Staff personnel who are certified MCO-Es should on-duty SF flight personnel not be available.

2.1.1. The MCO-E will meet the following requirements: One year time on station, E-5 or higher, Department of Defense Civilians (GS-5 and above) who are United States Citizens, have at least six months retainability, and no record of disciplinary action. Additionally, all MCO-E candidates must be given a thorough background investigation by the Office of Special Investigations (OSI) detachment at Little Rock Air Force Base (LRAFB).

2.1.2. The Defense Force Commander (DFC) may approve SF personnel E-4's to complete inspections who have completed training, but they must be supervised by a certified E-5 or higher.

2.1.3. The 19 SFS Unit Security Manager will review the list of approved MCO-E's monthly to ensure the highest standard of reliability. Personnel who have a record of alcoholism, drug abuse or other disciplinary action will be removed from the list of qualified MCO-E's and reported to the Port Director for revocation of certification. Personnel who have a Security Information File (SIF) initiated will be removed from the approved MCO-E list.

2.2. The MCO-E kit will be maintained at the Base Defense Operations Center (BDOC) and accounted for every shift by the Base Defense Operations Center Controller (BDOCC). The MCPM will check the kit monthly to ensure it has an appropriate amount of materials (forms, containers etc.) and ensure publications and documents are current.

2.3. Once per quarter the MCPM will meet with US Customs and Border Protection personnel to receive briefings on current issues and feedback on the MCP.

2.4. The MCPM will update the electronic MCO-E Flight Report (locally devised product) with data collected by the MCO-E. The MCPM will send the MCO-E Flight Report to the US CBP Little Rock Port monthly, or upon request. The MCPM will also coordinate with CBP to hand off all required paperwork generated by MCO-E inspections.

2.5. Items placed in the amnesty box will be turned into Security Forces investigations for proper disposition.

3. Regulated Garbage Handling Procedures. 19 LRS will provide Air Transportation functions to remove regulated garbage from inbound aircraft and ensure proper disposal IAW AFI 24-605, Volume 2 and CBP/USDA and 19 AW Memorandum of Agreement (MOA). The MOA is maintained by 19 LRS/LGRDX at (501) 987-7526.

3.1. The 19 LRS/LGRA will ensure all personnel controlling regulated garbage on all aircraft arriving from a foreign origin, regardless of their role attend the agricultural portion of the Military Customs Inspector-Excepted (MCI-E) training course. This is a four hour course taught annually by USDA certified by CBP Agriculture Specialist.

3.2. Training logs that include date of training, name of trainee, specific topics covered, and name of trainer will be maintained by Aircraft services for a minimum of three years from the end of the month in which training occurred.

3.3. The MCPM will maintain all training records for a minimum of one year from the end of the month in which the training occurred.

4. Pre-Announcement.

4.1. The on-duty Command Post (CP) Controller will perform a daily check for inbound military aircraft requiring US Customs and Border Protection clearance. The CP Controller will notify 19 SFS/BDOC of the results, including negative results. This notification will be logged in the AF Fm 53. Notification will be made as soon as possible but no later than eight hours prior to the aircraft arrival.

4.2. Airfield Operations will immediately notify 19 SFS/BDOC when they receive a PPR (Prior Permission Required) request for all aircraft requiring customs. The notification will include the point of departure, type of aircraft, estimated time of arrival, designated parking spot (if known), number of personnel on board (if known) and any pre-clearances.

4.3. Upon notification from either CP or Airfield Operations, the 19 SFS/BDOC will notify US CBP, 19 SFS/Military Working Dog (MWD) Kennel Master and 19 LRS/Aircraft Services (ADOC/Ext-8173 weekends/holidays Ext (501) 533-0445) as soon as an aircraft is projected in- bound to coordinate inspection activities. On the day of arrival of the aircraft the 19 SFS/BDOC will notify the SFS Operations Superintendent, NCOIC of Police Services, MCPM and OSI. The pre-announcement notifications will be annotated in the AF Form 53 (Security Forces Blotter).

5. Inspection/Clearance Procedures. The following procedures will be followed to ensure proper clearance of personnel and equipment.

5.1. The BDOCC will dispatch a Narcotics Detection MWD team (if available) and sufficient personnel to secure the aircraft until released by U.S. CBP or the MCO-E. The BDOCC will also confirm 19 LRS/Aircraft Services are aware of the in-bound aircraft and personnel are enroute to assist with regulated garbage.

5.2. The MCO-E will:

5.2.1. Meet the aircraft upon arrival and obtain all pertinent forms with required signatures.

5.2.2. Ensure the aircraft was decontaminated (sprayed) prior to landing.

5.2.3. Check the aircraft for any insects/animals prior to allowing the rear cargo door and troop doors to open. If insects are found in the aircraft, seal the aircraft until the arrival of US Agricultural personnel.

5.2.4. Brief arriving crew members and passengers on requirements for U.S. Customs and Agriculture clearance and amnesty box procedures.

5.2.5. Provide an Amnesty Box and sufficient time for personnel to utilize it.

5.3. 19 LRS

5.3.1. Transport all passengers, aircrew and baggage to Bldg. 430 while maintaining a customs quarantine (if 50 or more passengers; or if MCO-E/CBP deem it necessary). Cargo will be inspected before it leaves the aircraft to prevent possible Material Handling Equipment contamination/loss, after which it will be transported to the cargo yard adjacent to Bldg. 259 (if necessary).

5.3.2. Trained personnel will remove regulated garbage from the aircraft for disposal, annotate the number of bags and total weight in pounds of waste removed from the aircraft in the regulated garbage log maintained by LRS/Aircraft Services, and provide the MCO-E with a copy of the regulated garbage log monthly. If no trained personnel are available to remove international refuse from the aircraft, notify 19 SFS/BDOC immediately to request CBP personnel respond to assist. This determination needs to be made three hours prior to arrival of the aircraft.

5.3.2.1. Regulated garbage will be double bagged prior to removal from the aircraft. Bags must be at least four mil (0.004-inch) and sealed with USDA tape. Place the regulated garbage in containers marked “REGULATED GARBAGE” and cover with a tight fitting lid. Load container(s) in covered vehicle for transport to Bldg 260.

5.3.2.2. Regulated garbage will be stored in a lockable room in Bldg. 260 until disposal. All regulated garbage will be stored in rigid, tight, covered, leak-proof receptacles. Storage receptacles shall be marked with “REGULATED GARBAGE” in at least two-inch high letters

5.3.3. Regulated garbage must be logged in upon receipt at Bldg. 260 and logged out upon disposal or transported to Clinton National Airport (CNA) for disposal by means of incinerator. Once received regulated garbage must be disposed of or transported to CNA within 120 hours.

5.3.4. Any spillage will be reported to US CBP immediately.

5.3.4.1. Maintain a log containing information on amounts and concentrations of disinfectants used in order to fulfill Environmental Protection Agency reporting instructions. This log will contain at a minimum the (1) Arrival date of aircraft, (2) Tail number, (3) Where the spill occurred, (4) Sanitizer used, (5) CBP notification, (6) The initials of the employee.

5.3.4.2. If a spill occurs outside the aircraft, Virkon S is used. When Virkon S is used for spills, it will be mixed with water according to the manufacturer's instructions. The Virkon S is stored in the hazardous materials lockers located in Bldg 260. The spill log is filled out by the employee that cleaned the spill. This log contains (1) The name of the employee that cleaned the spill, (2) The arrival date of the aircraft, (3) The tail number, (4) Where the spill occurred, (5) Type of disinfectant used and how much was used.

5.3.4.3. Any time a regulated garbage spill occurs, contact CBP at (501) 324-5289 or after hours: 1-800-XSECTOR (1-800-973-2867) and ask to speak with the Little Rock Port Director.

5.3.4.4. The spill log will be maintained for a minimum of three years.

5.4. After the inspector has cleared the aircraft, to include cargo pallets, and once all; cargo, personnel and regulated garbage is removed from the aircraft, the MCO-E will:

5.4.1. Inspect cargo pallets for US Customs seals and proper documentation. Annotate number of sealed cargo pallets. If cargo pallets are not sealed, immediately stop cargo pallet inspections and notify the US CBP Little Rock Port Director, who will respond to inspect cargo.

5.4.2. Collect a customs declaration from each person after baggage is claimed and ensure the declarations are signed.

5.4.2.1. Ensure all items introduced into the U.S. are depicted on the personal declaration and value is displayed in U.S. currency.

5.4.2.2. Ensure the description of each item including the primary composition of the item and any valuable additions (i.e., wood clock with 14kt gold roman numerals).

5.4.2.3. Ensure alcohol is listed with type, volume and proof, where purchased and value.

5.4.3. Collect the passenger manifest and crew orders to ensure each person turned in a customs declaration. Collect a U.S. Agriculture PPQ Form 250 from the aircraft commander.

5.4.4. After all personnel are in a suitable inspection quarantine area, ensure each bag is claimed by a person and all bags are lined up in an orderly fashion for a narcotics detection MWD team to complete a sweep of all bags. Any bags left unclaimed will be treated as a suspicious package.

5.4.5. Open and inspect the contents of no fewer than 50% of bags that narcotics detection MWD teams do not respond to. Ensure each government weapon is listed by serial number on individual travel orders. Any weapon not annotated by serial number and type on individual travel orders will be confiscated via DD Form 2817.

5.4.6. Document all specifics of the inspection utilizing the Customs Inspection Log.

5.4.7. For infractions concerning narcotics or firearms, seize contraband via DD Form 2817, detain suspects, notify U.S. CBP officials and await their arrival.

5.4.8. For infractions concerning contraband other than narcotics and firearms, notify CBP, then seize the contraband via DD Form 2817 and complete an incident report if CBP agents do not respond. Photograph agricultural contraband and ensure 19 LRS disposes of it as refuse.

5.4.9. All documentation for the inspection will be placed into a sealed manila envelope and routed to the MCPM. The envelope will have the name of the senior MCO-E on scene.

5.5. If at any time it is determined a major agricultural or environmental hazard exists, immediately notify the fire department and initiate emergency management actions.

5.6. The AF Form 53/Security Forces Desk Blotter is the primary document utilized to record Military Customs Inspections. After the inspection is complete, the blotter will reflect the arrival and clearance times, place of origin, aircraft tail number, assigned squadron, aircraft parking spot, number of crew and passengers, number of bags present/checked, amount of trash taken (by kilogram) by 19 LRS and which MCO-E completed the inspection.

DAVIES R. DENNY, Colonel, USAF
19 Airlift Wing Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

7 CFR § 330.400 – *Plant Protection Act of 2000 and Animal Health Act*, 9 CFR § 94.5 – *Regulation of Certain Garbage*

19 U.S.C. § 1401(i), *Customs Duties* - Miscellaneous AFMAN 11-202V3, Flight Operations

AFI 24-605, Volume 2, *Air Transportation Operations*

Defense Transportation Regulation – Part V, Chapter 501 – *Department of Defense (DOD) Customs and Border Clearance Program (CBCP)*

Defense Transportation Regulation – Part V, Chapter 507 – *Military Customs Inspectors-Excepted (MCI-E)*

Memorandum of Agreement Between Customs and Border Protection and Little Rock Air Force Base, Jacksonville, AR, Regarding the Domestic Military Customs Officer (excepted) Program (DMCO (excepted) P), Agreement #FB4460-22306-025, Signed Jan 2023

DoDI 4000.19 – *Support Agreements*

Adopted Forms

DD Form 2817, *Evidence/Property Tag* AF Form 53, *Security Forces Desk Blotter* PPQ Form 213, *Airplane Inspection Record*

PPQ Form 250, *Aircraft Clearance or Safeguard Order*

Customs and Border Protection Form 55, *Designation, Customs Officer (Excepted)*

Customs and Border Protection Form 7507, *General Declaration* Customs and Border Protection Form 7509*, Air Cargo Manifest* Customs and Border Protection Form 6059B, *Customs Declaration*

Abbreviations and Acronyms

AETC—Air Education and Training Command

AFI—Air Force Instruction

AMC—Air Mobility Command

AW—Airlift Wing

BDOC—Base Defense Operations Center

CBP—Customs and Border Protection

CNA—Clinton National Airport

DFC—Defense Force Commander

IAW—In Accordance With

LRS—Logistics Readiness Squadron

MAJCOM—Major Command

MCO—E—Military Customs Officer – Excepted

MCPM—Military Customs Program Manager

MWD—Military Working Dog

OPR—Office of Primary Responsibility

OSI—Office of Special Investigations

PPR—Prior Permission Required

RDS—Records Disposition Schedule

SFS—Security Forces Squadron